IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

Electronically Filed
FIRST CIRCUIT
1RC191003776
15-JUN-2026
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Dkt. 423 ORD

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit nonprofit corporation, by its Board of Directors, Plaintiff and Counterclaim Defendant, vs. NIKODEM PIKOR, Defendant and Counterclaim Plaintiff.	CIVIL NO. 1RC191003776 ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS Trial Dates: May 12, 2022, October 26-27, 2022, January 11-12, 2023, April 5, 2023 Hearing: January 13, 2025 Judge: Hon. Chris A. Thomas
NIKODEM PIKOR, Defendant and Third Party Plaintiff, vs. THYSSENKRUP ELEVATOR CORPORATION, a foreign profit Corporation. Third Party Defendant.	

ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS

Plaintiff/Counterclaim Defendant ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF INC., a Hawai'i nonprofit corporation, by its Board of Directors ("Association") requests a total award of **$257,097.50** in attorneys' fees and for total costs in the amount of **$12,743.54**, for a total amount of **$269,841.04**. After six days of trial, the Association's Motion was submitted based on the judgment on its motion for directed verdict awarding the Association the total sum of **$2,260.15**, filed on August 1, 2024.

The Association filed its Motion for Attorneys' Fees on June 27, 2024 (Association's Motion"), and Defendant/Counterclaimant NIKODEM PIKOR ("Pikor") filed its Opposition on July 31, 2024. The Association filed its Reply Memorandum in Support on August 1, 2024. A hearing on Association's Motion was held on January 13, 2025. After careful consideration of Association's Motion, as well as supporting and opposing memoranda, supporting declarations and exhibits, and the relevant legal authority, this Court hereby GRANTS IN PART AND DENIES IN PART the Association's Motion.[1]

"Ordinarily, attorneys' fees cannot be awarded as damages or costs unless so provided by statute, stipulation or agreement." *Stanford Carr Dev. Corp vs. Unity House, Inc.,* 111 Hawai'i 286, 305, 141 P.3d 459, 478 (2006) (citation and quotation marks omitted). In Hawai'i, attorneys' fees shall be awarded when provided by

[1] This Court heard the Association's Motion, however, was not the Judge that sat on and heard the six days of trial. Judge Summer Kupau-Odo heard this matter at trial. Therefore, this Court reviewed the docket sheet, pleadings and trial exhibits that this Court deemed relevant to rule on Association's Motion.

statute, stipulation or agreement. *Food Pantry, Ltd., vs. Waikiki Business Plaza, Inc.*, 58 Hawai'i 606, 618 575 P.2d 869, 878 (1978). In accordance with Hawai'i Revised Statutes "HRS" § 514B-157, the Association is entitled to an award for "[a]ll costs and expenses, including reasonable attorneys' fees"..."[e]nforcing any provisions of the declaration, bylaws [a]nd house rules...against an owner..." HRS § 514B-157(a)(3) (2024). The "provisions of the declaration, by laws and house rules" that were enforced in this action are contained in Exhibit 1 of the Complaint filed by the Association on May 31, 2019. Dkt. 1. There is no question in this case that the Association is the prevailing party.

In determining the amount of attorneys' fees, although the District Courts of the State of Hawai'i are courts of limited jurisdiction, HRS § 604-5, specifically states that "Attorney's commissions or fees, including those stipulated in any note or contract sued on, interests and costs, shall not be included in computing the jurisdictional amount."

Rule 1.5 of the Hawai'i Rules of Professional Conduct ("HRPC") requires that a lawyer's fee be reasonable. The Rule enumerates several factors to be considered in determining reasonableness of attorneys' fees. The factors of particular importance listed by HRPC 1.5 to this Court are the following:

> (1) The time and labor required, the novelty and difficulty of the questions involved, and the skill requisite to perform the legal service properly;
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> (3) The fee customarily charged in the locality for similar legal services;
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> (4) The amount involved and the results obtained.

The party requesting fees has the burden to prove that the requested fees were reasonably and necessarily incurred. *Sharp v. Hui Wahine*, 49 Hawai'i 241, 246, 413 P.2d 242, 247 (1966).

The Association was represented by two separate attorneys and respective law firms. Pikor, in his Answer filed on July 8, 2019, asserted two Counterclaims against the Association. Dkt. 5. After further litigation and eventual leave of Court, Pikor, with new counsel, filed an Amended Answer on July 9, 2020, which now asserted seven Counterclaims. The law firm of Roecca Luria Shin LLP represented the Association in defense of Pikor's Counterclaims. The initial lawyer from the law firm was April Luria, however, James Ferguson ("Attorney Ferguson") assumed representation of the Association for the substantial majority of the case. In his Declaration, Attorney Ferguson represented that his law firm represented the Association from January 31, 2019, to and including January 31, 2024,[2] and that approximately 424.3 hours were devoted to the case. *See*, Declaration of James Ferguson, p.2, Association's Motion. Of the total amount of attorneys' fees requested, the portion requested by Attorney Ferguson, and his respective law firm, is **$73,053.03.** The law firm also requests **$85.53** in costs.

A thorough review of the itemized billing statements attached as Exhibit "A" to the declaration of James Ferguson reveals that the statements contain

[2] Although the representation was stated to begin on January 31, 2019, a review of the itemized billing statements attached as Exhibit "A" to the declaration of James Ferguson reveals that the first dated entry is 7/31/2019, with a "review of the claim file and complaint." *see*, Association's Motion.

descriptive and precise entries as to the work performed. The billing statements are well organized and easy to comprehend with each invoice summarizing the total amount of hours expended during the applicable time period by the respective attorney and billing rate. The substantial majority of the billing entries were for work performed by Attorney Ferguson, an attorney who practiced primarily in the area of civil litigation since 2000. The billing rate for Attorney Ferguson for this case was $190 per hour. The Court finds that this hourly rate was reasonable. Apparent to the Court was that the scope and necessity of the work performed by Attorney Ferguson, and the other attorneys in his respective law firm (Attorney Ferguson was assisted by two associates), were exclusively and primarily driven by Pikor's legal actions and position. As a primary example, Pikor filed his Amended Answer with seven Counterclaims on July 9, 2020. Dkt. 97. In direct response, Attorney Ferguson, with the help of his associates, performed legal research, filed an Amended Answer, engaged in repeated and necessary motions practice, participated in depositions, and ultimately filed a Motion for Summary Judgment ("MSJ") on December 28, 2021. Dkt. 236. The hearing on that MSJ was held on February 22, 2022, and the Order by the Court was issued on April 5, 2022, which resulted in four of the seven Counterclaims by Pikor being dismissed. Dkt. 303. During that period when Pikor filed his Amended answer on July 7, 2019, through April 5, 2022, Attorney Ferguson, by direct consequence to Pikor's legal actions, expended approximately 240 hours from the total amount of the 424.3 hours supporting his request for attorneys' fees.

The one factor of HRPC Rule 1.5, that weighs heavily on the Court in reviewing the Association's Motion, is "(4) The amount involved and results obtained." In other words, is the amount of attorneys' fees requested reasonable and necessary to defend the Association against Pikor's counterclaims in this case. However, also of import to the Court is that the Complaint filed by the Association on May 31, 2019, detailed in Exhibit 1, the Association's theory of Pikor's legal responsibility through the Association's declaration, by laws and house rules and also clearly served notice to Pikor that he could potentially be held legally accountable for attorneys' fees and costs. Based on those factors and a review of Exhibit "A" to James Ferguson's declaration, this Court finds that the scope, type of work performed and the time allocated per task were reasonable and necessary and is accordingly awarded **$73,053.03** in attorneys' fees, and **$85.53** in costs.

From the inception of this case, the Association was also represented by Glenn Horio ("Attorney Horio") on its affirmative claim for the May 9, 2018 incident with Pikor that caused damage to the Association elevator. During the entire course of this case, Attorney Horio was a consecutive member of two different law firms. In his Declaration, Attorney Horio attached Exhibit "1" which are the invoices of the attorneys' fees when Attorney Horio was a member of the law firm Deeley King Pang & Van Etten for this case during the time period from March 5, 2020, through July 26, 2024. *See* Association's Motion. Also, in his Declaration, Attorney Horio attached Exhibit "2" which are the invoices of the attorneys' fees when Attorney Horio was a member of the law firm Anderson & Fujisaki LLP, for

this case during the time period from July 25, 2018, through February 13, 2020. *See* Association's Motion. In his declaration, Attorney Horio does not set out the approximate total hours that were devoted to the case. *See*, Declaration of Glenn Horio, Association's Motion. Attorney Horio billed at the rate of $260 to $275 per hour and has been practicing since 2004.[3] Of the total amount of attorneys' fees requested, the portion requested by Attorney Horio, and his respective law firms, is **$184,044.47.**[4] There is also a request for **$12,658.01** in costs.

Based on a chronological approach, a thorough review of the itemized billing statements attached as Exhibit "2" to the Declaration of Glenn Horio was difficult. Many of the billing entries were vague and there was a substantial number of redactions throughout that restricted this court from determining reasonableness and necessity. There were also instances of double billing, where conferences attended between the attorneys were billed by both attorneys, resulting in the billable hourly rate of $560[5] or more.[6] A thorough review of the itemized billing

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[3] Glenn Horio had 4 years less experience than James Ferguson, who was billing at $190 per hour in the same case, effectively representing the same client although on different claims.

[4] The Declaration of Glenn Horio does not breakdown the separate invoice amount for each respective law firm that added up to the total amount of $184,044.47.

[5] Exhibit "2" invoices did not summarize billable rates and total hours so the exact rate charged by Glenn Horio was not stated. In his Declaration, Glenn Horio stated his hourly rate was between $260 and $275. *See*, Declaration of Glenn Horio, p. 5 para. 8. in Association's Motion.

[6] Double billing entries in Exhibit "2" for meetings between GSH and PLL and billed by both attorneys occurred on the following invoices: 10/15/18, 11/15/18, 12/15/18, 2/15/19, 8/15/19 and 2/15/20.

statements attached as Exhibit "1" to the Declaration of Glenn Horio was difficult for the same reasons. Again, many of the billing entries were vague and there were a substantial number of redactions throughout that restricted this court from determining reasonableness and necessity. There were also instances of double billing, where conferences attended between the attorneys were billed by both attorneys, resulting in the billable hourly rate of $570.[7] In addition, although solely prosecuting a single affirmative claim to enforce recovery in the total amount of **$2,260,15**, two attorneys attended each trial date, despite the fact that the issues in this case were neither novel nor difficult. Therefore, the billable rate per hour on the six trial dates for both attorneys to attend was $420. A review of the billing statements for the same time periods also reveal that the effective rate of $420 was also incurred when both attorneys prepared for trial.[8]

Based on the above comprehensive review of the billing statements, the court also considered the factors enumerated in HRPC Rule 1.5, and concludes that the amount requested in attorneys' fees is not an amount that was reasonable, nor based on necessity.

In the review of all of the billing statements contained in both Exhibit "1" and "2", attached to the Declaration of Glenn Horio, the Court, based on its own

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[7] Double billing entries in Exhibit "1" for meetings between GSH and DWK, and/or GSH and TA or YK, and billed by both attorneys occurred on the following invoices: 6/30/20, 8/4/20, 2/10/21, 4/15/21, 5/19/21, 12/6/21, 2/3/22, 2/14/22, 3/28/22, 6/7/22, 7/1/22, 7/20/22, 8/17/22, 3/24/23 and 9/6/23.

[8] Double billing in Exhibit "1" for preparing and attending trial occurred on the following invoices: 8/17/22, 11/9/22, 3/24/23 and 8/10/23.

analysis, was able to determine that the total number of hours billed by all 10 attorneys from the two law firms that worked in this case was approximately 655.6 hours.[9] Based on the billing practices and the discrepancies identified above, and in consideration of all of factors identified in HRPC Rule 1.5, this Court believes that a reduction in the amount of the attorneys' fees is warranted. The Court believes that the lodestar method is applicable in this case. *DFS Group L.P. vs. Paiea Properties*, 110 Hawai'i 217, 222, 131 P.3d 500, 505 (2006); *Gurrrobat vs. HTH Corp.* 135 Hawai'i 128, 346 P.3d 197 (2015), *QBE Specialty Insurance Company vs. Uchiyama,* 2024 WL 3554565 (D.Hawaii'i 2024*); see also, Hensley vs. Eckerhart*, 461 U.S. 424, 433, 103 S.Ct. 1933, 76 L.Ed.2d 40 (1983) (the most useful starting point for determining the amount of a reasonable fee is the number of hours reasonably expended on the litigation multiplied by a reasonable hourly rate).

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[9] The total number of hours was not provided in the Declaration of Glenn Horio, although the hourly billable rate was. *See* Association's Motion. This total number was calculated by the Court in its review of the voluminous billing statements. The total hours breakdown for each of the attorneys was determined to be:

Attorney	Total Hours	Hourly Billable Rate
Glenn S. Horio	486.8	$260 to $275
Phillip L. Lahne	10.7	$300
Paul Ireland-Koftinow	.3	$270
Lance S. Fujisaki	.2	$335
Patricia D. Anguay	9.5	$150 to $160
Dennis W. King	7.4	$295
Tristan Andres	1.4	$175
Monica M. Wurlitzur	8.3	$125
Yun W. Kim	117.3	$145
Craig Okahara-Olsen	13.7	$115

Taking into consideration, co-counsel James Ferguson's hourly rate of $190 in the successful defense of seven original Counterclaims in this same case, the Court concludes that an average of the different two rates, an hourly rate of $225, constitutes a reasonable rate in this particular case. After a thorough examination of the billing statements, as well as a careful review of the record, this court concludes that 525 hours were reasonable and necessary.[10] This amount takes into account, a reasonable and more prudent use of associate attorney hours and the elimination of double billing. Finally, the lodestar method instructs this Court to multiply the reasonable rate by the sum of reasonable hours. *DFS L.P. Group, infra.* Accordingly, applying a rate of $225 per hour to a sum of 525 hours, this Court concludes that Attorney Horio and his respective law firms is awarded $118,125.00 in reasonable and necessary attorneys' fees and $5,566.05 in taxes. The calculation by this Court effectively reduces the amount request by approximately 35%. *DFS L.P. Group, infra.* This Court therefore determines that an award for attorneys' fees to Attorney Horio (and his respective law firms) that is reasonable and necessary is **$123,691.05**[11]

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[10] This amount is higher than the 424.3 hours that the Court found reasonable for James Ferguson, however, Glenn Horio was the lead attorney and represented the Association immediately following the May 9, 2018, elevator incident and throughout the pre-trial stage.

[11] It is not before this Court to determine the distribution between the respective law firms, but believes a pro rata percentage reduction of the total amount for each law firm's total billings would be appropriate.

The Court also awards to Attorney Horio (and his respective law firms) the total costs of **$12,658.01**[12] A significant amount of these costs, $11,417.96, is attributed to Expert witness costs. Expert witness fees are not normally allowed. *See Mist vs. Westin Hotels, Inc.* 69 Hawai'i 192, 202, 738 P.2d 85, 92 (1987)(*citing Lucas vs. Liggett & Myers Tobacco Co.*, 51 Hawai'i 346, 347, 461 P.2d 140, 142 (1960). However, this Court is cognizant that there were several attempts to resolve this case in a reasonable manner at the very inception and throughout the pre-trial process. Exhibits J1 through J13, admitted at trial (Dkt. 345), is correspondence between the Association and Pikor that evidences a clear attempt by the Association to resolve this case in a reasonable manner from the outset, while cautioning Pikor that if their offer was not accepted, that Pikor could clearly be held liable for attorneys' fees and costs. *See Canalez v. Bob's Appliance Service Center, Inc.*, 89 Hawai'i 292, 308, 972 P.2d 295, 311 (1999). Pikor also had an expert witness testify at trial. Dkt. 363. This Court also noted that Judge Summer Kupau-Odo in the Findings of Fact, Conclusions of Law and Order Granting Plaintiff/Counter Claim Defendant's Motion for Directed Verdict, relied upon the testimony of the Association's expert and also found the Association's expert more credible than Pikor's expert. *See* Dkt. 396 at p. 9 and footnote 4.

Again, as to Attorney Horio's request for attorneys' fees the one factor of HRPC Rule 1.5, that weighs heavily on the Court in reviewing the Association's

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[12] To be distributed to the respective law firms in accordance with the billing statements as provided in Exhibit "1" and Exhibit "2" attached to the Declaration of Glenn Horio.

Motion, is "(4) The amount involved and results obtained." In other words, is the amount of attorneys' fees requested reasonable and necessary to prosecute their one affirmative claim against Pikor in this case. As previously stated, also of import to the Court is that the Complaint filed by the Association on May 31, 2019, detailed in Exhibit 1, the Association's theory of Pikor's legal responsibility through the Association's declaration, by laws and house rules and also clearly served notice to Pikor that he could potentially be held legally accountable for attorneys' fees and costs. The Association was also insistent on resolving the matter reasonably at the inception of this case and throughout the pre-trial process and Pikor repeatedly and consistently refused. Instead, Pikor determined the complexion of this case by seeking to add five more counterclaims, which resulted in extended litigation and necessitating further litigation.

Therefore, IT IS HEREBY ORDERED Plaintiff/Counterclaimant Defendant is hereby awarded reasonable attorneys' fees in the total amount of **$196,744.08** and total costs in the amount of **$12,743.54**.

DATED: JUN 15 2026, Honolulu, Hawai`i.

HONORABLE CHRIS A. THOMAS
Judge of the above-entitled court

CHRIS A. K. THOMAS